

Motion to Compel Responses to Request for Production of Documents, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to demand for production of documents, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Deem Request for Admissions, Set One, as Admitted

Plaintiff Advanced Test Equipment Corporation's unopposed motion to deem request for admissions, set one, as admitted, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

10. S-CV-0056216 Schlein, Brian v. Pacheco-Zepeda, Luis Alberto

Motion to Consolidate

Brian Schlein moves to consolidate S-CV-0053572 (previously consolidated with S-CV-0054679) with S-CV-0056216.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc., § 1048, subd. (a).) Here, both matters involve the same motor vehicle collision on May 25, 2024 and overlapping (but not identical) parties. There are common questions of law and fact between these two actions. However, the parties have filed a notice of settlement of entire case in S-CV-0053572 indicating a request for dismissal would be filed following a petition for approval of compromise of claim of a minor. As it appears one of these actions has in substance resolved and the other has not, the distinct procedural postures of these actions do not lend themselves towards consolidation. The motion to consolidate is denied.

11. S-CV-0056872 Dowling, Teresa Evelyn v. Dept. of Motor Vehicles

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

First Amended Petition for Writ of Administrative Mandate

Petitioner seeks issuance of a writ of administrative mandate directing respondent to rescind its suspension of petitioner's driver's license or to require respondent to make reasonable accommodations for further testing. Respondent has answered the first amended petition.

Petitioner has not submitted an administrative record to the court as required by Code of Civil Procedure section 1094.5. While each party has submitted initial briefs, petitioner's brief filed July 16, 2026 is supported by deficient notice (providing respondent only 13

court days' notice) and makes no citations to the administrative record. Respondent's brief raises the issue of deficient notice and confirms that not only has no administrative record been submitted to the court, petitioner has not requested a certified copy of the administrative record from respondent.

The court schedules this writ petition for a status conference on **September 15, 2026 at 8:30 a.m. in Department 32**. Petitioner shall forthwith obtain a copy of the administrative record and lodge it with the court by September 3, 2026. In advance of the continued hearing, the parties are directed to meet and confer in good faith regarding a further briefing schedule and a hearing date for the first amended petition. By September 3, 2026, the parties shall file a joint declaration describing the meet and confer efforts and providing a proposed briefing schedule and a proposed hearing date. Tentative ruling procedures pursuant to Local Rule 20.2.3 will apply to the September 15, 2026 status conference.

12. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Default Judgment

Plaintiff's request for default judgment in the amount of \$130,153.31 as against defendant LoanDepot.com LLC is denied without prejudice. Under the one judgment rule, plaintiff's request is premature. Generally, there shall be only one judgment in each action, commonly referred to as the "one judgment rule." (*Bank of America Natl. Trust & Savings Assn. v. Super. Court* (1942) 20 Cal.2d 697, *Morehart v. County of Santa Barbara* (1994) 7 Cal.4th 725, 740–41.) While default has been entered against defendant LoanDepot.com LLC, another defendant in this action, Selene Finance LP, is actively litigating this matter. The court will not enter judgment as to one defendant while litigation remains pending as to another defendant.

Based on the foregoing, the motion for default judgment is denied without prejudice.